

Form No:HCJD/C-121
ORDER SHEET

IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Case No. Crl. Misc. No.8774-B of 2014

Asif Mehmood etc. **Versus** The State etc.

S.No. of order/ Proceedings	Date of order/ Proceedings	Order with signature of Judge and that of Parties of counsel, where necessary.
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19.08.2014. Mr. Mazhar Hayat, Advocate along with the petitioners.
Mr. Muhammad Arshad Farooqi, Deputy Prosecutor
General along with Muhammad Hayat ASI with record.
Mr. Faisal Hayat Bosal, Advocate for the complainant.

Asif Mehmood, Mian Ahmad and Muhammad Akbar, petitioners seek bail before arrest in case FIR No.635 dated 21.11.2013, offence under Sections 337-A(i), 337-A(iii), 148 and 149 PPC registered at Police Station Jhal Chakian District Sargodha. The allegation against the petitioners is that they along with their co-accused while armed with different weapons attacked the complainant and caused him injuries. It is pertinent to mention here that Muhammad Akbar petitioner was not nominated in the FIR and he was implicated through supplementary statement of the complainant dated 17.12.2013.

2. Heard. Admittedly, there is delay of four days in the registration of the FIR. I have observed that the injury specifically attributed to Asif Mehmood, petitioner is the only injury that constitutes the offence under Section 337-A(iii) PPC which is non-bailable and also falls under the prohibitory clause of Section 497 of the Code of Criminal Procedure but the fact remains that the District Medical Board has declared that possibility of fabrication of the same injury cannot be ruled out while rest of the offences alleged against the

petitioners are bailable. Mian Ahmad petitioner who is the father of Asif Mehmood petitioner has not been attributed any specific injury and even he has not been alleged to have used hatchet during the occurrence. So far as the petitioner Muhammad Akbar is concerned, he is not nominated in the FIR and he was implicated through a belated supplementary statement recorded on 17.12.2013. Even in the said supplementary statement, he has not been assigned any injury on the person of injured. I have also noted that the statements, under Section 161 of the Code of Criminal Procedure, of eyewitnesses namely, Muhammad Saqlain and Maqsood Ali were recorded after a considerable delay of about one month. In this view of the matter, the case of all the petitioners calls for further inquiry into their guilt as is envisaged under Section 497(2) of the Code of Criminal Procedure coupled with the fact not denied by the prosecution that the complainant was aggrieved because of sale of plot in issue owned by the petitioners Asif Mehmood and his father Mian Ahmad jointly to the petitioner Akbar against the wishes of the complainant who, due to that reason, nourished grudge in his mind against all the three petitioners and a civil suit regarding said plot is also pending before the civil court. According to the Investigating Officer present in Court, no recovery is to be effected from the petitioners. All the petitioners have joined investigation. Asif Mehmood petitioner is an employee in District Courts, Mian Ahmad petitioner is a retired school teacher having the age of about seventy years, whereas, Muhammad Akbar petitioner is also a government employee and all the petitioners have no criminal antecedents. In my view, the wisdom behind the legislation of Section 498 of the Code of Criminal Procedure is to save such like persons in such like cases

from humiliation likely to be caused by their unnecessary and unjustified custody with the police. Be that as it may, in the circumstances of the instant case, sending the petitioners behind the bars to come out on post arrest bail after a few days does not look reasonable. Seeking light from the cases Muhammad Aslam versus State (PLJ 1999 Cr. C. Lahore 1504) and Muhammad Ramzan versus Zafar Ullah and another (1986 SCMR 1380), this petition is accepted and ad-interim bail before arrest already allowed to the petitioners is hereby confirmed subject to their furnishing fresh bail bonds in the sum of Rs.1,00,000/- each with one surety each in the like amount to the satisfaction of the learned trial court.

3. However, it is made clear that the supra observations are tentative in nature, relevant only for the disposal of this bail petition and shall not influence the learned trial court in any manner during the trial.

(Syed Shahbaz Ali Rizvi)
Judge

APPROVED FOR REPORTING:

Judge

‘Javaid’